



Notification Waiver Determination

Turkish Airlines - Air Europa

Acquisition	Türk Hava Yolları Anonim Ortaklığı (together with its controlled entities, Turkish Airlines) applied for a notification waiver in respect of its proposed acquisition of a 26–27% controlling stake in Air Europa Holding, S.L. (together with its subsidiaries, Air Europa), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	29 May 2026

Parties to the Acquisition	The acquirer, Turkish Airlines, operates in the aviation sector globally. It provides passenger and cargo air transportation, including international flights into and out of over 130 countries. Turkish Airlines also conducts other related activities including maintenance and repair operations, courier services, manufacturing of aircraft interiors, and ground services. These services are provided in Türkiye. In Australia, Turkish Airlines provides international passenger air transport services into, and out of, Melbourne and Sydney (either directly or by way of cooperation agreements) and cargo air transportation using the belly-hold capacity of certain passenger flights. The target, Air Europa, is a Spanish aviation group that primarily operates international and domestic scheduled air services for the carriage of passengers and cargo. Air Europa is a wholly-owned and controlled subsidiary of Globalia Corporación Empresarial, S.A. (Globalia). Globalia is a Spanish tourism group which does not have any corporate presence or assets in Australia. Air Europa does not operate any flights to or from Australia. Its activities in Australia are largely confined to the sale of passenger tickets for routes that are wholly operated outside of Australia (e.g. Madrid-Paris), with some sales for international flights that include a segment to/from Australia where that segment is operated by a third-party airline pursuant to a codesharing/interlining agreement for air passenger transport services.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act).

	Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no direct horizontal overlap between Turkish Airlines and Air Europa in the supply of international air passenger transport services to and from Australia b. Air Europa has a small, indirect presence in the supply of international air passenger transport services to and from Australia via codesharing/interlining agreements with a third-party airline, however it does not operate the Australian segment of any international flights c. there are several alternative suppliers of international air passenger transport services to and from Australia. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act